

US Cosmetics Regulation FD&C + MoCRA

FD&C Act Definition of Cosmetic

Title: Definition of Cosmetic

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §201(i); 21 U.S.C. §321(i)

Plain English Summary:

The FD&C Act defines what qualifies as a cosmetic in U.S. law. Products intended for cleansing, beautifying, promoting attractiveness, or altering appearance can fall within this definition; however, the statutory definition specifically excludes soap.

For an Ayurvedic startup, this definition is important because whether a product is legally treated as a cosmetic depends on its intended use, and products making drug-type claims may instead fall under the drug provisions of the FD&C Act.

The Exact Legal Text:

21 U.S.C. §321(i) Cosmetic

The term cosmetic means (1) articles intended to be rubbed, poured, sprinkled, or sprayed on, introduced into, or otherwise applied to the human body or any part thereof for cleansing, beautifying, promoting attractiveness, or altering the appearance, and (2) articles intended for use as a component of any such articles; except that such term shall not include soap.

Keywords/Triggers:

cosmetic definition USA, Ayurvedic cosmetic USA, FD&C cosmetic definition, cosmetic product classification, cleansing product, beautifying product, appearance claims, 21 USC 321(i)

FD&C Act Adulterated Cosmetics

Title: Requirements for Adulterated Cosmetics

Jurisdiction: International

Category: Standards

Source Citation: Federal Food, Drug, and Cosmetic Act, §601; 21 U.S.C. §361 Adulterated cosmetics

Plain English Summary:

A cosmetic is considered adulterated when it contains harmful substances, is contaminated, is manufactured or held under insanitary conditions, contains an unsafe color additive, fails applicable cosmetic GMP requirements, or lacks adequate safety substantiation.

This is particularly important for an Ayurvedic cosmetic because the manufacturer/responsible person needs to control ingredient safety, contamination, manufacturing conditions, and supporting safety evidence.

The Exact Legal Text:

21 U.S.C. §361 Adulterated cosmetics

A cosmetic shall be deemed to be adulterated

(a) If it bears or contains any poisonous or deleterious substance which may render it injurious to users under the conditions of use prescribed in the labeling thereof, or under such conditions of use as are customary or usual, except that this provision shall not apply to coal-tar hair dye, the label of which bears the following legend conspicuously displayed thereon: 'Caution-This product contains ingredients which may cause skin irritation on certain individuals and a preliminary test according to accompanying directions should first be made. This product must not be used for dyeing the eyelashes or eyebrows; to do so may cause blindness.', and the labeling of which bears adequate directions for such preliminary testing.

(b) If it consists in whole or in part of any filthy, putrid, or decomposed substance.

(c) If it has been prepared, packed, or held under insanitary conditions whereby it may have become contaminated with filth, or whereby it may have been rendered injurious to health.

(d) If its container is composed, in whole or in part, of any poisonous or deleterious substance which may render the contents injurious to health.

(e) If it is not a hair dye and it is, or it bears or contains, a color additive which is unsafe within the meaning of section 379e(a) of this title.

(f) If it has been manufactured or processed under conditions that do not meet the good manufacturing practice requirements of section 364b of this title.

(g) If it is a cosmetic product, and the cosmetic product, including each ingredient in the cosmetic product, does not have adequate substantiation for safety, as defined in section 364d(c) of this title.

Keywords/Triggers:

adulterated cosmetic, Ayurvedic cosmetic safety, cosmetic contamination, cosmetic GMP, unsafe cosmetic ingredient, color additive, cosmetic safety substantiation, 21 USC 361

FD&C Act Misbranded Cosmetics

Title: Requirements for Misbranded Cosmetics

Jurisdiction: International

Category: Advertising

Source Citation: Federal Food, Drug, and Cosmetic Act, §602; 21 U.S.C. §362 Misbranded cosmetics

Plain English Summary:

A cosmetic can be misbranded if its labeling is false or misleading or if required information is missing or not presented prominently enough for consumers to read and understand it.

For an Ayurvedic cosmetic startup, this makes the label, product information, quantity declarations, and claims important compliance areas.

The Exact Legal Text:

21 U.S.C. §362 Misbranded cosmetics

A cosmetic shall be deemed to be misbranded

(a) If its labeling is false or misleading in any particular.

(b) If in package form unless it bears a label containing (1) the name and place of business of the manufacturer, packer, or distributor; (2) an accurate statement of the quantity of the contents in terms of weight, measure, or numerical count; and (3) the information required under section 364e of this title: Provided, That under clause (2) of this paragraph reasonable variations shall be permitted, and exemptions as to small packages shall be established, by regulations prescribed by the Secretary.

(c) If any word, statement, or other information required by or under authority of this chapter to appear on the label or labeling is not prominently placed thereon with

such conspicuousness (as compared with other words, statements, designs, or devices, in the labeling) and in such terms as to render it likely to be read and understood by the ordinary individual under customary conditions of purchase and use.

Keywords/Triggers:

misbranded cosmetic, cosmetic labeling USA, false cosmetic claims, misleading label, cosmetic packaging, labeling requirements, Ayurvedic cosmetic claims, 21 USC 362

MoCRA Safety Substantiation

Title: Safety Substantiation for Cosmetic Products

Jurisdiction: International

Category: Standards

Source Citation: Modernization of Cosmetics Regulation Act of 2022 (MoCRA), §608; FD&C Act §608; 21 U.S.C. §364d

Plain English Summary:

The responsible person must ensure that there is adequate substantiation of safety for the cosmetic product and must maintain records supporting that substantiation. The law does not prescribe one mandatory test for every cosmetic; instead, adequate substantiation can consist of appropriate tests, studies, research, analyses, or other evidence sufficient to support a reasonable certainty that the cosmetic is safe.

This is highly relevant to Ayurvedic cosmetics because safety evidence for Ayurvedic ingredients, botanical extracts, formulations, and finished products needs to be supportable if the product's safety is questioned.

The Exact Legal Text:

21 U.S.C. §364d(a) Substantiation of safety

A responsible person for a cosmetic product shall ensure, and maintain records supporting, that there is adequate substantiation of safety of such cosmetic product.

21 U.S.C. §364d(c)(1) Adequate substantiation of safety

The term adequate substantiation of safety means tests or studies, research, analyses, or other evidence or information that is considered, among experts qualified by scientific training and experience to evaluate the safety of cosmetic

products and their ingredients, sufficient to support a reasonable certainty that a cosmetic product is safe.

21 U.S.C. §364d(c)(2) Safe

The term safe means that the cosmetic product, including any ingredient thereof, is not injurious to users under the conditions of use prescribed in the labeling thereof, or under such conditions of use as are customary or usual.

Keywords/Triggers:

cosmetic safety substantiation, MoCRA safety requirements, Ayurvedic ingredient safety, cosmetic safety evidence, botanical cosmetic safety, safety records, adequate substantiation, 21 USC 364d